



EXPANSION OF MANDATORY IMMIGRATION DETENTION FOR UNDOCUMENTED CLIENTS

This advisory discusses a new category of undocumented clients who may now be subject to mandatory immigration detention as a result of certain convictions - **and even certain arrests**. (The new provision was enacted as the “**Laken Riley Act**”.) Criminal defense counsel should be aware of it and advise their clients accordingly.

TO WHOM DOES THIS ADVISORY APPLY?

This advisory applies to clients who entered the United States without permission (i.e. physically crossed the border illegally), have no other criminal history **and** have not previously been ordered removed (deported).

This advisory does **not** apply if your client falls into one of the following categories:

1. Lawful permanent residents (a.k.a. green card holders);
2. Those who entered the U.S. lawfully, such as on a visa (students, visitors/tourists, work visas...) ***even if it has expired / they violated the terms*** or as a Refugee; or
3. Those who have previously been ordered removed (deported); or

If your client falls within categories 1-3, please contact the RIAC for case-specific advice, because the information in this advisory does not apply to them.

WHO IS SUBJECT TO MANDATORY DETENTION?

Unlike in criminal law, certain individuals arrested by Immigration and Customs Enforcement (“ICE”) have no statutory right to even request release. This means that a client can be detained, based on mere *allegations* of removability - with no need for a court to approve of this determination. There are several different categories of people who could be subject to this “mandatory detention,” as it is referred to in Immigration law. This advisory addresses only one of those categories: a newly enacted statute called the Laken Riley Act (which amends 8 U.S.C. § 1226). **This new law prohibits release for a client who:**

1. Entered the U.S. without inspection (i.e. unlawfully, illegally, across the border); and
2. Is charged with, arrested for, convicted of [or] admits having committed:
 - a. burglary,
 - b. theft,
 - c. larceny,
 - d. shoplifting,
 - e. assault of a law enforcement officer offense, or
 - f. any crime that results in death or serious bodily injury

POTENTIAL OPTIONS FOR YOUR CLIENT & ADVICE YOU MUST GIVE

By the time defense counsel are involved, it may be impossible to avoid mandatory detention, because no matter the disposition, your client will still have been arrested/charged with an offense referred to in the new section of the INA. Nevertheless, your client may be able to preserve important legal arguments for use in immigration court, based on actions you take in criminal court.

If your client is able to dispose of the case with a non-qualifying offense - or even better, no conviction at all through a dismissal - they can argue that the mandatory detention statute **no longer applies**, because they are not a person who “is charged with, is arrested for... [a qualifying offense]” (instead, they were charged / arrested...). Because this statute is so new, we do not know how the courts will rule on this argument.

However, the best option for your client may not be clear. There may be tension between (1) disposing of the case as quickly as possible with a non-qualifying offense (to preserve arguments that mandatory detention does not apply) and (2) seeking a better disposition, such as an ACD - even where that means leaving the case pending (because a better disposition may help them win their immigration court case).

For example: if your client entered the U.S. illegally, has no prior contact with immigration or law enforcement (i.e. convictions or arrests) and is charged with Petit Larceny (i.e. a qualifying offense), a standard offer may be an ACD + restitution.

If your client accepts the ACD, a criminal case remains pending for 6 months. During this time, they will be both removable (for entering without inspection) and arguably subject to mandatory detention (because they “are still charged with... theft/larceny”). On the other hand, receiving an ACD - assuming that the criminal case is ultimately dismissed - will mean that they do not receive a *conviction*, which is a significant benefit if they need to apply for any discretionary form of relief from removal (i.e. a defense to deportation).

If your client instead pushes for a quick plea to a non-qualifying offense e.g. trespass or disorderly conduct, they will end up with a conviction (which could lower their chances of being granted discretionary relief), but hopefully avoid mandatory detention (which can significantly increase their chances of being granted relief and avoiding deportation).

AT THIS TIME, WE CANNOT ADVISE WHICH IS THE BEST WAY FORWARD - BUT WILL UPDATE THIS ADVISORY IMMEDIATELY AS AND WHEN THE LEGAL ISSUES ARE RESOLVED.

IN THE MEANTIME: YOUR CLIENT MUST BE THE ONE TO CHOOSE!